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Register of Actions

Case No. 22CV39627

Tyler Allen Lofall vs County of Clackamas, West Linn Police Department, Clackamas County Police Department, Dana Gunnerson, Caitlin Blythetal. §
§
§
§
§

Case Type: **Tort - General**
Date Filed: **11/18/2022**
Location: **Clackamas**

Party Information

		Attorneys
Defendant	**Blyth, Caitlin** Answer/dism	**DAVID C LEWIS** *Retained* 503 763-3861(W) ~~William Stabler~~ ~~*Retained*~~ ~~503 846-8671(W)~~
Defendant	**Clackamas County Jail** Dism	
Defendant	**Clackamas County John Doe Police Office @1** Dism	
Defendant	**Clackamas County John Doe Police Officer #2** Dism	
Defendant	**Clackamas County Police Department** Dism	
Defendant	**County of Clackamas** Dism	
Defendant	**Gunnerson, Dana** Answer/dism	**DAVID C LEWIS** *Retained* 503 763-3861(W) ~~William Stabler~~ ~~*Retained*~~ ~~503 846-8671(W)~~
Defendant	**Portlock, Rebecca** Dism Clackamas County District Attorney's Office 807 Main Street, Room 7 Oregon City, OR 97045	**Eliot Deringer Thompson** *Retained* 503 983-8862(W)
Defendant	**West Linn Police Department** Answer/dism	**DAVID C LEWIS** *Retained* 503 763-3861(W) ~~William Stabler~~ ~~*Retained*~~ ~~503 846-8671(W)~~
Plaintiff	**Lofall, Tyler Allen** 6880 NW 271st Ave Hillsboro, OR 97124	**Pro Se**

Events & Orders of the Court

DISPOSITIONS

04/11/2023 **Judgment - Limited Dismissal** (Judicial Officer: Wetzel, Michael C.)
Party(Clackamas County Police Department; Clackamas County John Doe Police Office @1; Clackamas County John Doe Police Officer #2)
Created: 04/11/2023 8:11 AM

05/11/2023 **Judgment - Limited Dismissal** (Judicial Officer: Wetzel, Michael C.)
Party(County of Clackamas; Clackamas County Jail; Portlock, Rebecca)
Created: 05/11/2023 1:25 PM

03/06/2025 **Judgment - General Dismissal** (Judicial Officer: Steele, Kathie F)
Party(County of Clackamas; West Linn Police Department; Clackamas County Police Department; Gunnerson, Dana; Blyth, Caitlin; Clackamas C
Created: 03/06/2025 11:34 AM

OTHER EVENTS AND HEARINGS

11/18/2022 **Complaint**
Created: 11/18/2022 3:10 PM

11/18/2022 **Service**

County of Clakamas	Unserved	
West Linn Police Department	Served	11/28/2022
	Returned	01/10/2023
Clackamas County Police Department	Unserved	
Gunnerson, Dana	Unserved	
Blyth, Caitlin	Served	11/28/2022
	Returned	01/10/2023
Clackamas County John Doe Police Office @1	Unserved	
Clackamas County John Doe Police Officer #2	Unserved	
Clackamas County Jail	Unserved	
Portlock, Rebecca	Served	11/28/2022
	Returned	01/10/2023

Created: 11/18/2022 3:10 PM

11/18/2022 **Application - Fee Deferral Waiver**
Created: 11/18/2022 3:11 PM

11/18/2022 **Order - Fee Waiver** (Judicial Officer: Authority, Administrative)
CIV4: $884: Waived: @Accounting Main Workflow
Signed: 11/18/2022
Created: 11/18/2022 3:12 PM

12/27/2022 **Complaint - Amended**
Created: 01/05/2023 9:33 AM

12/27/2022 **Service**

County of Clakamas	Served	12/28/2022
	Returned	01/10/2023
West Linn Police Department	Served	01/03/2023
	Returned	01/10/2023
Clackamas County Police Department	Unserved	
Gunnerson, Dana	Served	01/09/2023
	Returned	01/10/2023
Blyth, Caitlin	Served	01/03/2023
	Returned	01/10/2023
Clackamas County John Doe Police Office @1	Unserved	
Clackamas County John Doe Police Officer #2	Unserved	
Clackamas County Jail	Served	04/03/2023
	Returned	04/04/2023

Created: 01/05/2023 9:38 AM

12/27/2022 **Service**

Portlock, Rebecca	Served	01/09/2023
	Returned	01/10/2023

Created: 01/31/2023 12:59 PM

12/27/2022 **Proof of Service - Mail**

County of Clakamas	Unserved

Created: 02/01/2023 9:06 AM

12/27/2022 **Proof of Service - Mail**

West Linn Police Department	Unserved

Created: 02/01/2023 9:15 AM

01/10/2023 **Notice**
Appearance of Atty Eliot Thompson.
Created: 01/10/2023 12:04 PM

01/10/2023 **Proof - Service**
Summ/Amen Compl: Office svc to Carrie P (front desk) at the DA's office for Def Portlick on 12.28.22 & ADMA First Class to Def on 01.09.23
Created: 01/31/2023 12:54 PM

01/10/2023 **Proof - Service**
Amend Compl/Summ: Personal Office Svc to Marie (Clerk of Court) for Clackamas County on 12.28.23 - Still needs mailing to satisfy svc.
Created: 02/01/2023 9:00 AM

01/10/2023 **Proof of Service - Substitute**
Amend Compl: Personal Office Service to Mr. Bill Gardard (PIC) for def West Linn PD on 01.03.23 - Needs mailing to complete service.
Created: 02/01/2023 9:14 AM

01/10/2023 **Proof - Service**
Amend Compl: Personal Svc to def Catlin Blyth on 01.03.23
Created: 02/01/2023 9:23 AM

01/10/2023 **Proof - Service**
Summ/Compl: Personal Svc to West Linn PD on 11.28.22 & Summ/Compl: Personal Svc to Catlin Blyth on 11.28.22
Created: 02/03/2023 1:39 PM

01/10/2023 **Proof of Service - Substitute**
Does not indicate what was served. To: Atty General by delivering to Tyler, Front desk 12/30/22

Created: 02/03/2023 1:41 PM

01/17/2023 **Motion - Rule 21**
Exempt from Filing Fee Pursuant to ORS 20.140 - Calendaring Civil Motions to Schedule Workflow
Created: 01/17/2023 3:15 PM

01/26/2023 **Opposition**
to Def's 01/17/23 Rule 21
Created: 01/27/2023 8:42 AM

01/26/2023 **Exhibit**
Created: 01/27/2023 8:42 AM

02/01/2023 **Proof - Service**
Amend Compl/Summ:Office Svc to Joella Swanson & Mr. Bill Garoland (PIC) for def Dana Gunnarson on 01.03.23 & ADMA first class on 01.09.23
Created: 02/01/2023 8:34 AM

02/01/2023 **Proof of Service - Substitute**
Compl/SUMM/Note to Sue: PSSE Personal Office Svc to Cathy/Nicole (Clerks) for DA Rebecca Portluck on 11.28.22 - Needs mailing to complete service.
Created: 02/01/2023 10:08 AM

02/01/2023 **Proof of Service - Mail**

Portlock, Rebecca	Unserved

Created: 02/01/2023 10:12 AM

02/06/2023 **Reply**
ISO Rule 21
Created: 02/06/2023 1:12 PM

02/27/2023 **Hearing - Motion** (8:45 AM) (Judicial Officer Garza, Keith M)
Def West Linn Police, Dana Gunnarson, and Blyth's Rule 21 motion. Non - Oral This is not a hearing.
02/27/2023 Reset by Court to 02/27/2023
Result: Held
Created: 01/19/2023 1:09 PM

03/09/2023 **Motion - Appoint Counsel**
Calendaring Civil Motions to Schedule Workflow
Created: 03/09/2023 8:27 AM

03/09/2023 **Notice - Rule 7 - 63 Day**
Created: 03/09/2023 11:36 AM

03/15/2023 **Order - Denial** (Judicial Officer: Steele, Kathie F)
Appoint Counsel
Signed: 03/14/2023
Created: 03/15/2023 8:30 AM

03/22/2023 **Opinion - Letter** (Judicial Officer: Garza, Keith M)
re: 02/27/23 hrg: Mr. Stabler will prepare the order. Plaintiff shall have 30 days from entry of that order to ?le the second amended complaint.
Signed: 02/27/2023
Created: 03/22/2023 4:02 PM

04/04/2023 **Proof - Service**
Sec. Amend Compl/Motion for Summ Jdgmt/Summ/Motion to add the Jail & Clackamas County Sheriff/Cert of Svcs: Personal Office Svc to Lt. McCulloagh (PIC) at the Jail 2206 Kaen Rd., Oregon City, OR 97045 on 03.31.23 & ADMA First Class Mail to def Clackamas County Jail on 04.03.23
Created: 04/04/2023 8:27 AM

04/04/2023 **Motion - Reconsider**
relief; appointment of counsel; 21 motions dismiss; revisit after assistance of counsel - Calendaring Civil Motions to Schedule Workflow
Created: 04/04/2023 10:52 AM

04/04/2023 **Motion - Summary Judgment**
ff waived - Summary Judgment Workflow
Created: 04/04/2023 2:38 PM

04/11/2023 **Digitized Judgment Document** (Judicial Officer: Wetzel, Michael C.)
Def's Clackamas County John Doe Police Office @ 1 Clackamas County John Doe Police Office # 2 Clackamas County Police Department only
Signed Date: 04/11/2023
Created: 04/11/2023 8:12 AM

04/11/2023 **Notice - Judgment Entry**
Created: 04/11/2023 8:12 AM

04/11/2023 **Notice - Rule 7 - 91 Day**
Created: 04/11/2023 8:26 AM

04/18/2023 **Response**
pts motion for relief: appoint pro bono counsel: def 21 motion to dismiss
Created: 04/18/2023 11:56 AM

04/18/2023 **Response**
pts motion to reconsider
Created: 04/19/2023 9:14 AM

04/21/2023 **Response**
to Ptf's MSJ - Summary Judgment Workflow
Created: 04/24/2023 8:53 AM

04/24/2023 **Response**
to Ptf's MSJ
Created: 04/24/2023 11:50 AM

04/24/2023 **Order - Rule 21** (Judicial Officer: Wetzel, Michael C.)
Ptf allowed to re-allege counts 1, 2, 3, 4, 6, 7 against West Linn Defendants. Counts 5, and 8-14 are dismissed with Prejudice, as to West Linn Defendants.
Signed: 04/19/2023
Created: 04/24/2023 1:07 PM

04/25/2023 **Complaint - Amended**
Third Amended (Clackamas Co. Police Department has been dismissed and has not been reinstated-not adding related service for this party)
Created: 04/26/2023 2:13 PM

04/25/2023 **Service**

County of Clakamas	Unserved
West Linn Police Department	Unserved
Gunnerson, Dana	Unserved

Blyth, Caitlin Unserved
Clackamas County Jail Unserved
Portlock, Rebecca Unserved
Created: 05/08/2023 2:06 PM

05/05/2023 **Motion - Summary Judgment**
Renewed MSJ - Summary Judgment Workflow
Created: 05/11/2023 3:21 PM

05/05/2023 **Motion - Summary Judgment**
specific fact findings - Summary Judgment Workflow
Created: 05/11/2023 3:21 PM

05/08/2023 **Hearing - Motion** (9:00 AM) (Judicial Officer English, Stephen F)
*PTF M/Relief *Aty Thompson rdy 5/4*
Result: Held
Created: 04/06/2023 1:10 PM

05/08/2023 **Answer - Affirmative Defense**
FF-Exempt ORS 20.140 MJM
Created: 05/08/2023 1:27 PM

05/11/2023 **Digitized Judgment Document** (Judicial Officer: Wetzel, Michael C.)
Signed Date: 05/11/2023
Created: 05/11/2023 1:26 PM

05/11/2023 **Notice - Judgment Entry**
Created: 05/11/2023 1:27 PM

05/11/2023 **Issue - At Issue**
*** December - January - February*
Created: 05/11/2023 1:31 PM

05/12/2023 **Reply**
To Def West Linn's Answer
Created: 05/12/2023 12:28 PM

05/15/2023 **Reply**
Amended
Created: 05/15/2023 2:32 PM

05/24/2023 **Notice**
@Calendaring Main Workflow
Created: 05/24/2023 9:52 AM

05/30/2023 **Response**
To Ptf's Renewed MSJ
Created: 05/30/2023 4:08 PM

05/30/2023 **Declaration**
Created: 05/30/2023 4:08 PM

05/30/2023 **Declaration**
Created: 05/30/2023 4:08 PM

05/30/2023 **Declaration**
Created: 05/30/2023 4:08 PM

06/15/2023 **Order - Denial** (Judicial Officer: Wetzel, Michael C.)
for reconsideration
Signed: 06/13/2023
Created: 06/15/2023 10:11 AM

06/28/2023 **Hearing - Summary Judgment** (1:30 PM) (Judicial Officer Roberts, Leslie M)
*Plaintiff's Motion for SJ filed 4/4/23; Responses filed 4/21/23 & 4/24/23; Renewed Motion for SJ filed 5/5/23; SENIOR JUDGE ROBERTS PRESIDING; 45-minute hearing via WebEx *Aty Stabler Rdy 6/26*
Result: Held
Created: 04/25/2023 10:00 AM

07/01/2023 **Opposition**
Created: 07/10/2023 2:46 PM

07/20/2023 **Order - Denial** (Judicial Officer: Roberts, Leslie M)
ORDER DENYING PLAINTIFF'S MOTION FOR SUMMARY JUDGMENT AND RENEWED MOTION FOR SUMMARY JUDGMENT AND DEFENDANTS WEST LINN POLICE DEPARTMENT, DANA GUNNARSON AND CATLIN BLYTH'S CROSS-MOTION FOR SUMMARY JUDGMENT
Signed: 07/17/2023
Created: 07/20/2023 10:20 AM

08/02/2023 **Petition**
Emergency Motion for Interim Relief
Created: 08/03/2023 3:44 PM

08/02/2023 **Motion - Show Cause**
Interim Relief
Created: 08/03/2023 3:44 PM

08/12/2023 **Memorandum - At Law**
Emergency Motion for Interim Relief - #Judge Wetzel JA Inbox Workflow
Created: 08/14/2023 1:57 PM

08/19/2023 **Request - Hearing**
Created: 08/21/2023 11:41 AM

08/22/2023 **Motion**
for Expedited Hearing. No form of order submitted.
Created: 08/23/2023 8:51 AM

08/25/2023 **Response**
to motion for show cause and interim relief; cross-motion for attorneys fees. Calendaring Civil Motions to Schedule Workflow
Created: 08/28/2023 8:25 AM

08/25/2023 **Notice**
Counsel's Notice of Unavailability. @Calendaring Main Workflow
Created: 08/28/2023 8:25 AM

08/27/2023 **Reply**
to def late response to pltfs request for interim relief. - #Judge Wetzel JA Inbox Workflow
Created: 08/28/2023 1:19 PM

10/12/2023 **Order - Denial** (Judicial Officer: Wetzel, Michael C.)

show cause - Denied
Signed: 10/11/2023
Created: 10/12/2023 10:17 AM

10/23/2023 *CANCELED* **Hearing - Motion** (9:00 AM) (Judicial Officer Schroer, Janet M)
Continued
M/Relief
Created: 10/11/2023 3:22 PM

11/02/2023 **Motion - Continuance**
Created: 11/03/2023 9:24 AM

11/06/2023 **Declaration**
Created: 11/06/2023 11:45 AM

11/06/2023 **Objection**
to motion to continue - ! PJ Staff Motions to Postpone & Expedited Matters Workflow
Created: 11/08/2023 10:29 AM

11/06/2023 **Motion - Judgment**
Declatory jgmt - Judge Roderick Boutin Pro Tem Workflow
Created: 11/08/2023 10:29 AM

11/06/2023 **Letter**
Created: 11/08/2023 10:30 AM

11/06/2023 **Order - Proposed**
Duplicate filing, no action taken.
Created: 11/08/2023 10:30 AM

11/06/2023 **Order - Proposed**
Order unsigned; Incorrect submittal per Judge Boutin;
Created: 11/08/2023 10:30 AM

11/14/2023 **Order - Postponement** (Judicial Officer: Wetzel, Michael C.)
Granted;
Signed: 11/13/2023
Created: 11/14/2023 10:06 AM

11/17/2023 **Response**
ptfs motion for declatory jgmt and motion for atty fees - @Calendaring Main Workflow
Created: 11/20/2023 9:15 AM

11/20/2023 **Hearing - Motion** (9:00 AM) (Judicial Officer Boutin, Roderick A)
M/Relief reset from 10/23/23 due to conflict for Judge Schroer;
Result: Held
Created: 10/20/2023 5:05 PM

12/12/2023 *CANCELED* **Hearing - Settlement Conference** (9:00 AM) ()
Continued
Crt
Created: 05/24/2023 2:52 PM

12/15/2023 **Order** (Judicial Officer: Wetzel, Michael C.)
Denying Plaintiff's Motion for Interim Relief and Defendants' Cross-Motion for Attorney Fees
Signed: 12/13/2023
Created: 12/15/2023 11:00 AM

01/09/2024 *CANCELED* **Trial - Twelve Person Jury** (9:00 AM) ()
Continued
Letter
Created: 05/24/2023 2:50 PM

04/26/2024 **Hearing - Settlement Conference** (9:00 AM) (Judicial Officer Tran, Thanh H)
**Trial Date: 5.21.24 *atty Stabler rdy, fees quoted; 4.23.24 *atty Thompson (DOJ) not attending; 4.23.24 *pet emailed, fees quoted; 4.23.24 *1x s/o 04/26/2024 Reset by Court to 04/26/2024*
Result: Held
Created: 12/13/2023 3:11 PM

05/21/2024 *CANCELED* **Trial - Twelve Person Jury** (9:00 AM) ()
Continued
**1 s/o *No THT hgsl *Atty Lewis Rdy, 6wit, 4days 5/17 *3hours for Pre trial motions in limine (reconsider summary judgement) 5/17 *per atty Lewis, pet filed motion to remove to fed court on 5.18 *1x s/o*
Created: 12/13/2023 3:10 PM

05/28/2024 **Notice**
of Removala to Federal Court
Created: 05/29/2024 11:57 AM

05/29/2024 **Closed**
Created: 05/29/2024 11:57 AM

06/20/2024 **Notice**
Remanded to Clackamas County Circuit Court
Created: 06/20/2024 4:14 PM

07/29/2024 **Notice - Withdrawal of Attorney**
Created: 07/29/2024 12:37 PM

02/13/2025 **Motion - Dismissal No Prejudice**
Plaintiff's Motion To Dismiss Without Predjudice To Persue Claims In Federal Court
Created: 02/13/2025 11:16 AM

03/06/2025 **Digitized Judgment Document** (Judicial Officer: Steele, Kathie F)
Signed Date: 03/06/2025
Created: 03/06/2025 11:35 AM

03/06/2025 **Notice - Judgment Entry**
Created: 03/06/2025 11:36 AM

03/06/2025 **Closed**
Created: 03/06/2025 11:43 AM

08/26/2025 **Trial - Twelve Person Jury** (9:00 AM) ()
**Court*
Created: 02/05/2025 1:03 PM

Financial Information

	Plaintiff Lofall, Tyler Allen			
	Total Financial Assessment			1,107.00
	Total Payments and Credits			1,107.00
	Balance Due as of 04/29/2025			**0.00**
11/23/2022	Transaction Assessment			884.00
11/23/2022	Waiver			(884.00)
04/23/2024	Transaction Assessment			223.00
04/23/2024	Mail Payment	Receipt # 2024-270936	West Linn Police Department	(223.00)